

26 April 2019

OUR REF:

RJB:8699

YOUR REF:

2019/00476

Mr Shaun Moran
Resolutions Officer
Health Complaints Commissioner

By email: shaun.moran@hcc.vic.gov.au

Dear Mr Moran

**re: Dr John Whitaker (my client)
Complaint by Mr Richard McLean**

I confirm that I am acting for Dr Whitaker. I respond on his behalf to your letter to the practice manager at Millennium Medical Centre (MMC) dated 14 March 2019.

Mr McLean first attended MMC on 7 August 2011, consulting with Dr Vo. Mr McLean saw other doctors before his first consultation with Dr Whitaker on 25 January 2012. On my count Mr McLean had 119 consultations with Dr Whitaker, the last on 17 October 2018.

I attach a document in which I have extracted information from the extensive clinical records which is pertinent to the issues raised by Mr McLean. There are many consultations Dr Whitaker prescribed medications to assist Mr McLean with mental health issues. There were also many consultations in which medical advice and treatment were provided for physical health issues.

Mr McLean was referred by Dr Whitaker and his colleagues to psychiatrists and psychologists on a number of occasions. The following are those referrals. They were made by Dr Whitaker unless otherwise stated.

Date	Referral
13/10/2011	Dr Don Bornstein, psychiatrist (referral by Dr Vo).
25/01/2012	Dr Sandra Nguyen, psychiatrist.
19/06/2012	Sandra Nguyen, psychologist; Dr Andreas Perenyi, psychiatrist (referrals by Dr Emezie).
16/04/2013	Sharna Hughes, psychologist (referral by Dr Zhang).
06/08/2013	Dr Andreas Perenyi, psychiatrist.

28/08/2013	Sharna Hughes, psychologist.
23/09/2013	Werribee Empathy Health Care.
25/02/2014	Sharna Hughes, psychologist.
18/08/2014	New View Psychology.
16/10/2014	Dr Manoj Kumar, psychiatrist.
23/07/2015	Psychologist.
21/10/2015	Dr Manoj Kumar, psychiatrist.
18/03/2016	Dr David Freilich, neurologist (to investigate sleep disturbance).
12/07/2016	Dr Asish Mordia, psychiatrist.
02/09/2016	Robert McKinnon, psychologist.
10/10/2016	Dr Stella Kwong, psychiatrist.
18/11/2016	Dr David Horgan, psychiatrist.
24/10/2017	Psychologist.
19/12/2017	Dr Samir Ibrahim, psychiatrist.
24/09/2018	Dr Stella Kwong, psychiatrist.

Few psychiatrists bulk bill patients. Dr Stella Kwong is one who does. Dr Whitaker provided referrals to Dr Kwong on two occasions. Mr McLean says he did not want to attend appointments with Dr Kwong. This is unfortunate, as she met this financial requirement which was important to Mr McLean.

Mr McLean says that Dr Whitaker did not assist him in finding a bulk billing psychiatrist. In circumstances where bulk billing psychiatrists are few and the patient has attended a number of psychiatrists, it is a reasonable course for a general practitioner to provide the patient with a list of psychiatrists for the patient to contact to ascertain whether the patient can attend as a bulk billed patient. Mr McLean complains that he had to cease attending Dr Robert McKinnon (psychiatrist) because he was unable to afford the cost of appointments. Mr McKinnon is a psychologist.

The following are the dates upon which Dr Whitaker and his colleagues prepared or reviewed GP mental health treatment plans. The services were provided by Dr Whitaker unless otherwise indicated.

Date	Mental health treatment plan/review
07/08/2011	Plan (by Dr Vo).
19/06/2012	Review of plan (by Dr Emezie).
16/04/2013	Review of plan (by Dr Zhang).

28/08/2013	Review of plan.
23/07/2015	Plan.
02/09/2016	Review of plan.
24/10/2017	Plan.

Dr Whitaker prescribed Xanax for Mr McLean on two occasions: 08/11/2012 and 04/06/2013. Dr Whitaker had earlier recorded that Mr McLean was on Xanax which must have been prescribed at another clinic. During the period when Dr Whitaker prescribed Xanax to Mr McLean, he was consulting with psychiatrists and psychologists. Dr Kumar, psychiatrist wrote to Dr Whitaker on 17 October 2013. He made several recommendations, including that Xanax be continued for Mr McLean. Over the duration of the prescriptions of Xanax, doses were reduced to the point that Mr McLean was able to cease the medication in late 2014.

There are entries in the clinical records when Dr Whitaker discussed with Mr McLean his suicidal thoughts. There was never occasion when hospitalisation appeared to be indicated. Throughout the period that Mr McLean attended Dr Whitaker, he was also attending psychiatrists and psychologists.

There was one occasion when at the request of Mr McLean, Dr Whitaker completed an NDIS Form. Dr Whitaker completed the form identifying schizophrenia of 24 years as the first diagnosis, depression of 24 years as the second diagnosis and an anxiety disorder as the third diagnosis. These diagnoses are entirely consistent with all correspondence from psychiatrists and psychologists on the MMC clinical file. No one identified a diagnosis of post-traumatic stress disorder (PTSD).

I am providing this response to Mr McLean's complaint to make clear that his recollection of events and accordingly his complaints are very much at odds with the contemporaneous clinical records. I see no basis to consider Mr McLean's claim for compensation.

Yours sincerely



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Dr John Whitaker

Mr Richard McLean

Notes from clinical file, Millennium Medical Centre

Date	Note
07/08/2011	RM first attended Millennium Medical Centre. Consultation Dr Vo. Mental health treatment plan; referral mental health.
06/10/2011	Consultation Dr Vo. Has been seeing psychologist.
13/10/2011	Consultation Dr Vo. Would like a referral to a Dr Bornstein who apparently bulk bills. Referral letter provided.
25/01/2012	First consultation JW. Need psych referral. MHCP done in August 2011. Records dose of Xanax which patient is taking
19/06/2012	Consultation Dr Emezie. Needs a review MHCP with psychologist. Has had six sessions with Dr Nguyen. Also needs referral to his psychiatrist, last referral expired. Referral letter provided; GP mental health care plan review; referral letter to Dr Nguyen.
12/10/2012	Consultation JW. Currently stable, sees psychiatrist Dr Perenyi.
08/11/2012	Consultation JW. Xanax prescribed.
28/11/2012	Consultation JW. Will need psychol referral; use a psychiatrist for scripts.

01/02/2013	Consultation JW. Noticed some increasing paranoia, anxiety since Xanax at reduced to BD. Has psych appointment after Thailand trip.
06/02/2013	Consultation JW. Recent increase in paranoia, delusion. Discussed with psychologist who recommended resume Solian. He contacted Saltwater this morning, they are happy with this and will keep in contact with him.
03/04/2013	Consultation JW. Ran out of Solian and which was very helpful.
16/04/2013	Consultation Dr Zhang. Mental health treatment plan review. Referral to psychologist Sharna Hughes.
04/06/2013	Consultation JW. Xanax prescribed.
06/08/2013	Consultation JW. He has psych review due. Feeling reasonably well. Referral letter to Dr Andreas Perenyi, psychiatrist.
28/08/2013	Consultation JW. MHCP review. Referral letter to Sharna Hughes.
18/09/2013	Consultation JW. Recently a bit manic. Stresses at home, reducing Xanax. Counselling, he will contact psychiatrist.
23/09/2013	Consultation Dr Le. Needs new referral to psychiatrist. Referral letter provided.
25/02/2014	Consultation JW. GP mental health treatment plan review. Referral letter to Sharna Hughes, psychologist.
25/06/2014	Consultation JW. Quite anxious at present. Xanax prescribed.
14/08/2014	Consultation JW. Needs ongoing psychotherapy via MHCP.
18/04/2014	Consultation JW. Mental health care plan review. K10 assessment tool. Referral letter to New View Psychology.
16/10/2014	Consultation JW. Referral letter to Dr Manoj Kumar, psychiatrist.

18/11/2014	Consultation JW. Wants to get off Xanax. Xanax 1 mg changed to alprazolam 0.5 mg.
25/11/2014	Consultation JW. No Xanax for four days. Alprazolam 0.5 mg ceased.
11/05/2015	Consultation JW. Dosages have been adjusted by his psych.
16/06/2015	Consultation JW. Needs new MHCP.
17/07/2015	Consultation JW. Benzo script changed by his psych. Review for MHCP.
23/07/2015	Consultation JW. Mental health treatment plan. Referral letter. Referral letter to psychologist.
21/10/2015	Consultation JW. Referral to Dr Kumar, psychiatrist.
10/11/2015	Consultation JW. Seen by Dr Kumar: no treatment change.
18/03/2016	Consultation JW. Psychiatrist has requested referral re possible narcolepsy. Referral letter to Dr David Frielich (neurologist).
12/07/2016	Consultation JW. Needs referral. Referral letter to Dr Ashish Mordia, psychiatrist.
02/09/2016	Consultation JW. Referral letter to Robert McKinnon, psychologist.
10/10/2016	Consultation JW. Request referral. Referral letter to Dr Stella Kwong, psychiatrist.
18/11/2016	Consultation JW. Has contacted a new psychiatrist. Referral letter to Dr David Horgan, psychiatrist
11/01/2017	Consultation JW. See psychiatrist letter. ADHD (attention deficit-hyperactivity disorder).
16/02/2017	Consultation JW. Completed form to request permit for treatment S8 drugs.

23/02/2017	Note by JW. Permit not given. Phone call to Richard: all future scripts to be provided by psychiatrist.
27/02/2017	Consultation JW. Email from psychiatrist noted.
17/03/2017	Consultation with JW. Major arguments with family re sexuality. Suicidal thoughts. Denies current intent. His psychologist is giving him a psychiatrist name.
22/06/2017	Consultation JW. Mood swings, stresses. Seen psychologist, psychiatrist.
04/08/2017	Consultation JW. Moods are swinging. Counselling. Not suicidal.
24/10/2017	Consultation JW. Mental health treatment plan and K10 assessment tool. Letter referral to psychologist.
19/12/2017	Consultation JW. Very anxious at present. Requests new psych referral. Referral letter to Samir Ibrahim, psychiatrist.
24/09/2018	Consultation JW. Referral letter to Dr Stella Kwong, psychiatrist.